

****25.09.2023****

****A New Fine - Operator Authority from Local Public Administration****

The National Authority for the Supervision of Personal Data Processing completed an investigation in July 2023 at the operator UAT Commune Albeni and found violations of the provisions:

- art. 58 para. (1) lit. a) and lit. e) of Regulation (EU) 2016/679 and art. 14 para. (5) lit. e) of Law no. 190/2018;
- art. 13, art. 14, and art. 32 of Regulation (EU) 2016/679.

The operator was sanctioned with a contravention fine of 10,000 lei for failing to implement the measures previously ordered by the Authority through a remediation plan and for not responding to the Authority's requests, as well as receiving a warning for failing to inform the data subjects about their rights provided by Regulation (EU) 2016/679, and for not adopting appropriate security and confidentiality measures for the protection of personal data processed through the video surveillance system.

During the investigation conducted following a complaint regarding a possible violation of legal provisions concerning data processing by UAT Commune Albeni, through video surveillance cameras that allegedly monitor and verify all employees of the municipality by the mayor, it was found that the sanctioned operator did not implement measures previously ordered by the national supervisory authority through a remediation plan and did not respond to the Authority's requests.

In the same investigation, it was also found that the operator did not provide evidence of informing the data subjects about the rights provided by Regulation (EU) 2016/679, as well as the adoption at the level of UAT Commune Albeni of appropriate security and confidentiality measures for the protection of personal data processed through the owned video surveillance system, in violation of the provisions of art. 13 and art. 14 of the GDPR, as well as the obligations imposed by art. 32 of Regulation (EU) 2016/679.

Additionally, the National Authority for the Supervision of Personal Data Processing also applied corrective measures, ordering the operator:

- to comply with all requests from the Authority, as stipulated in the remediation plan;
- to implement appropriate security and confidentiality measures regarding the protection of personal data processed through the video surveillance system of UAT Albeni, to send to the national supervisory authority, in copy, the procedure/procedures adopted and evidence of training conducted for individuals who have access to the images captured by the video surveillance system, as well as to take necessary measures so that the data subjects are informed about their rights provided by Regulation (EU) 2016/679 in accordance with the provisions of art. 13 and art. 14 of the GDPR.

****Legal and Communication Department****

****A.N.S.P.D.C.P.****